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Rana Abubakar Khan

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truefriendlion@gmail.com

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MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON SEPTEMBER 2, 2018 AT 8:58PM

24 mcqs or 6 short 6 long,

30 to 40 ko prepare kren essentials and functions ko prepare kren bech ki fuzool batain chor dain

Article of association,

essentials of lease,

essentials of issuance of certificate business,

functions of labor court,



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especially 30 to 40 lectures se aye hue the or mcqs b mostly inhi se aye hue th

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON SEPTEMBER 2, 2018 AT 8:58PM

Mgt 611 today. Paper

24 mcqs. 6 shorts 6 longs

Objective mostly last lect se ae bht tough tha paper

subjective. Long questions

Conditions when employers are not liable under Workmen compensation 1923.

Requirements of marine policy

Certificate of commencement business

Purpose of trust is unlawful

Disqualifying of office. Bearer



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Significance of shares in limited companies

Application for registration

Conditions of compulsory dissolution

Essentials of endorsement

Auditors of listed company can hold its share or not. Explain

Quasi negotiable instrument

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON FEBRUARY 26, 2017 AT 11:44PM

MGT611 paper shared by Fatima Zahra

- 1) purpose of law of negotiable instruments 3 marks
- 2) difference between strike and lock out 3 marks
- 3) what type of benches shall be the chairmans of commission constitute 3 marks
- 4) how an appeal can be field to the court in respect of an order of secp 1979 sec 34
- 5) difference between partner firm and firm name according to partnership act
- 6) power of investigation officer in secp 1997 sec 31 5 marks
- 7) rights of worker
- 8) liabilities of drawer and drawee of a cheque



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9) what elements are essential formulate a partnership

10) what actions are required to be taken if the essential of trade union not fullfield

MGT611 FINAL TERM PAPER SHARED BY STUDENT

MGT611 FINAL TERM PAPER FALL 2016

Shared By Hassan Haider

- 1 - Difference between partnership at will and particular partnership
- 2 - Rights and duties of employer
- 3 - Duties of workers
- 4 - Certificate of commencement of business.
- 5 - Incorporation of NBFC.
- 6 - Liability of drawer and drawee.
- 7 - Declaration of trust.
- 8 - Factors related to sale of goods.
- 9 - Board of directors include?

MGT611 FINAL TERM PAPER SHARED BY STUDENT

MGT611 Final Term Paper Fall 2016
By Juste

40 Mcqs all conceptual do read handouts and slides.

Short & Long questions:

- What is the difference between strike and lock out?
- How to appeal to the High Court against the decision of Labor Court?
- Duties and liabilities of the Agent?
- One question of trade union.
- One question of joint Works Council.
- Briefly explain what is partnership at will?
- What is Dissolution and how many approaches to the Dissolution?
- What is the difference between Winding-up and Dissolution?
- The properties of Equity shares?



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MGT611 FINAL TERM PAPER SHARED BY STUDENT

MGT611 KA MERA PAST STUDENTS 2015

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total 60 question the g

40 mcqs

10 long question

- 1: How the securities and exchange commission investigates and proceeds in case of any offence by the company ?
- 2: Describe the essentials of a endorsement?
- 3: Who will be the collective bargaining agent when there is only one trade union establishment?
- 4: Elaborate a few duties or workers as contain in industrial relation ordinance.
- 5: Discuss the effects of holding out as per partnership act 1932?
- 6: Give the examples of transfer of ownership?
- 7: Provide the requirements of memorandum of association of company?
- 8: What are the essential aspects to be considered while forming and joining trade unions?
- 9: How an appeal is preceded in the high court against industrial disputes?
- 10: What condition should be fulfilled while awarding the decision by the labor court?

MGT611 FINAL TERM PAPER SHARED BY STUDENT

on March 9, 2015 at 4:05pm

What is the difference between a partner, firm and firm name as per Partnership Act, 1932? (3marks)

Enlist a few ingredients of a bill of exchange. (3marks)

Who will be the collective bargaining agent when there are more than one registered trade unions in an establishment: (3marks)



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Who will be the collective bargaining agent when there is only one trade union in an establishment? (3marks)

Discuss the scope of trustee as contained in section 10 of the Trusts Act, 1882. (3marks)

Describe the conditions to create a trust which should be fulfilled by the author of trust as contained in section 6 of the Trusts Act, 1882. (5marks)

the determination by a Labour Court, Arbitrator or an Appellate Court of competent jurisdiction of any industrial dispute or any matter relating thereto is called: (5marks)

What conditions should be fulfilled while awarding the decision by the Labour court? (5marks)

In which cases, an employer is not liable for the compensation as per Workmen's Compensation Act, 1923? (5marks)

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON MARCH 10, 2015 AT 10:04PM

BUSINESS AND LABOUR LAW (MGT611)

What do you know about trust? Explain whether the author of trust and trustee are same or not. (Marks: 3)

When does an office-bearer of a trade union disqualify for being office bearer? (Marks: 3)

Who will be collective bargaining agent when there is only one trade union in an establishment? (Marks: 3)

When the winding up of a company is considered to be commenced? Discuss the effects of voluntary winding up on the status of company. (Marks: 3)

Discuss the conditions in which firm is subject to compulsory dissolution. (Marks: 3)

Describe the conditions to create a trust which should be fulfilled by the author of trust as contained in section 6 of trust act 1882. (Marks: 5)

When and how the negotiation relating to differences and dispute are done? (Marks: 5)

To control the possible monopoly of some specific individuals on the country's economy as a whole, SECP passed some regulations. State and explain such codes by SECP and govern the corporate sector. (Marks: 5)



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What do you know what the crossing cheque? Can a crossed cheque be transferred? (Marks: 5)

List down the issues which are addressed by the collective bargaining agent. (Marks: 5)

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON MARCH 11, 2015 AT 11:16PM

Total Questions all subjective and objective 50

Total MCQ's 41

Subjective Questions:

Q) List down factors that should be considered in Carriage of Goods by Air (Marks 5)

Q) What are necessary conditions that a document should fulfill to be the promissory Note? (Marks 5)

Q) Discuss Few Duties and Rights of Employer as related to Industrial Relation Act? (Marks 5)

Q) What Functions does Labor Court Perform? (Marks 5)

Q) Briefly Elaborate Difference between Strike and Lockout? (Marks 3)

Q) When does an office bearer of a trade union disqualify for being office bearer? (Marks 3)

Q) What are the parties involved in promissory note, write down its functions? (Marks 3)

Q) What do you understand by partnership at will, explain it briefly? (Marks 3)

Q) How can a Non-Finance banking company be incorporated discuss with the reference by Company Ordinance Act 1984? (Marks 3)



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MGT611 FINAL TERM PAPER SHARED BY STUDENT

MGT611_SPRING2016_24AUG2016

- Duties of Bailee
- Formation phases of a company
- Explanation through illustration for the contract of bailment made for benefits of (1) bailor (2) bailee
- Essentials of Bills of Exchange
- Strikes and lock-out proceedings
- Who can be "Independent director" and who can select
- Who can be board of directors of listed companies
- Code of corporate governance
- Winding up of a company

MGT611 FINAL TERM PAPER SHARED BY STUDENT

MGT611 ,,, 28 AUG 2016 ,,, FINAL TERM

Q- non-banking finance company (related)

Q- which companies is include in non-banking finance company ?

Q- way in which firm must be dissolution ?

Q- how many way trust can be revoke ?

Q- security and exchange commission of Pakistan (detail about it 5 marks)

Q- formation of company phases ?

Q- how property can be transfer (related question)



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MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON MARCH 6, 2016 AT 12:12PM

Total Q = 50

Total MCQS = 40

5 x 3M Q

5 x 5M Q

MCQS were not from past paper files...read the handouts

What is meant by transfer of property? Who can transfer the property?3

What may the National Industrial Relations Commission do in dealing with a case of unfair labour practice?3

For the efficient performance of the functions of the National Industrial Relations Commission, what type of benches shall the Chairman of the Commission constitute?3

What are the criteria for a company to be considered as a Non Banking Finance Company?3

In which situations, a certificate of incorporation is issued?3

Dissolution of partnership can be done through court. Describe any five reasons on the basis of which, the court may dissolve a partnership?5



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How a 'creditor' is defined as per section 306, and what privileges are attached to the specific creditor?5

In how many ways, a trust can be come to an end?5

Who is a Shop steward? And what duties are performed by him?5

In case of rejection of application for registering the trade union, in which circumstances, registrar is considered to be liable? And what measures can be taken in this regard?5

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON AUGUST 24, 2015 AT 9:16PM

My Paper:

1. What is draft?
2. What do you know about Trust?
3. Who are the beneficiary of trust?
4. Who can make trust, working of trust according SECP?
5. Important points regarding property transfer according to the property transfer act.
6. How to deal with the industrial disputes according to industrial act?
7. Promissory note, parties between whom this is done?



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MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON AUGUST 30, 2015 AT 10:45AM

Q1-Who should be included in the board of directors of a listed company as described in the Code of Corporate Governance?

Q2-What do 'negotiable', 'instrument' and 'negotiable instrument' mean as per law of negotiable instruments?

Q3-Differentiate between 'collective bargaining agent' and 'collective bargaining unit'.

Q4-Briefly explain the kinds of life insurance.

Q5-What areas should be considered while defining the rights & liabilities of agents with respect to negotiable instruments?

Q6-In which situations, a certificate of incorporation is issued?

Q7-Discuss a few essentials of a contract of insurance..

Q8-What are the possible ways by which companies can gather funds to buildup its capital?

Q9-In which way the negotiable instrument is affected by the Endorsement? List down all possible consequences.

Q10-"Collective bargaining agent & Conciliator are said to be the same titles". Evaluate the statement.

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON AUGUST 30, 2015 AT 4:12PM

MGT 611

My Paper.

1.Essentials of promissory note?

2.Define contract of sale and essentials of contract of sale



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3. Cite the examples of property, Property Sale Act

4. Trustee k related question tha.

5. Industrial Disputes

6. Full endorsement and General endorsement

Negotiable instruments, parties of checks, cross check, trustee, Industrial Disputes k related MCQs thay

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON AUGUST 31, 2015 AT 4:06PM

Q 1. WHAT are the circumstances of winding up voluntarily?

Q 2. write the list of code of corporate governance the setup refereed as establishment ?

Q 3. write down the essential of promissory note?

Q 4. write down the list of industrial relation ordinance?

Q 5. POWER OF HIRING OF WINDING UP PETITION?

Q 6. CONDITION of a person to a bolder in due course?

Q 7. How sale is different from mortgage?

Q 8. Briefly discuss circumstances, as per law of sale of goods, where a condition is treated as 'warranty'

Q 9. Define contract of sale and essentials of contract of sale

Q 10. DIFFERENCE between trustee and author of trust



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MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON AUGUST 31, 2015 AT 10:56PM

total questions 50

40 mcqs..very easy...

q1. what is the purpose of law of negotiable instruments? (3marks)

q2. when does an office bearer of a trade union gets disqualify? (3marks)

q3. difference between winding up of a company and dissolution of company. (3marks)

q4. examples of property as per the property act. (3marks)

q5. conditions for the declaration of trust as per the law of trust. (3marks)

q6. status of auditor as share holder of the company. (5marks)

q7. identify stake holders if the securities market who are being registered and regulated under SECP act 1997. (5marks)

q8. who is an independent director of a company? how he can be selected? (5marks)

q9. contract of sale and its essentials. (5marks)

q10. conditions to create a trust which should be fulfilled by author of the trust as contained in section 6 of trust act 1882. (5marks).

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON MARCH 5, 2015 AT 5:50PM

mgt611 ka mera past students

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total 60 question the g

40 mcqs



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10 long question

- 1: How the securities and exchange commission investigates and proceeds in case of any offence by the company ?
- 2: Describe the essentials of a endorsement?
- 3: Who will be the collective bargaining agent when there is only one trade union establishment?
- 4: Elaborate a few duties or workers as contain in industrial relation ordinance.
- 5: Discuss the effects of holding out as per partnership act 1932?
- 6: Give the examples of transfer of ownership?
- 7: Provide the requirements of memorandum of association of company?
- 8: What are the essential aspects to be considered while forming and joining trade unions?
- 9: How an appeal is preceded in the high court against industrial disputes?
- 10: What condition should be fulfilled while awarding the decision by the labor court?

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON MARCH 9, 2015 AT 4:05PM

What is the difference between a partner, firm and firm name as per Partnership Act, 1932? (3marks)

Enlist a few ingredients of a bill of exchange. (3marks)

Who will be the collective bargaining agent when there are more than one registered trade unions in an establishment: (3marks)

Who will be the collective bargaining agent when there is only one trade union in an establishment? (3marks)

Discuss the scope of trustee as contained in section 10 of the Trusts Act, 1882. (3marks)



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Describe the conditions to create a trust which should be fulfilled by the author of trust as contained in section 6 of the Trusts Act, 1882. (5marks)

the determination by a Labour Court, Arbitrator or an Appellate Court of competent jurisdiction of any industrial dispute or any matter relating thereto is called: (5marks)

What conditions should be fulfilled while awarding the decision by the Labour court? (5marks)

In which cases, an employer is not liable for the compensation as per Workmen's Compensation Act, 1923? (5marks)

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON MARCH 10, 2015 AT 10:04PM

BUSINESS AND LABOUR LAW (MGT611)

What do you know about trust? Explain whether the author of trust and trustee are same or not. (Marks: 3)

When does an office-bearer of a trade union disqualify for being office bearer? (Marks: 3)

Who will be collective bargaining agent when there is only one trade union in an establishment? (Marks: 3)

When the winding up of a company is considered to be commenced? Discuss the effects of voluntary winding up on the status of company. (Marks: 3)

Discuss the conditions in which firm is subject to compulsory dissolution. (Marks: 3)

Describe the conditions to create a trust which should be fulfilled by the author of trust as contained in section 6 of trust act 1882. (Marks: 5)

When and how the negotiation relating to differences and dispute are done? (Marks: 5)

To control the possible monopoly of some specific individuals on the country's economy as a whole, SECP passed some regulations. State and explain such codes by SECP and govern the corporate sector. (Marks: 5)

What do you know what the crossing cheque? Can a crossed cheque be transferred? (Marks: 5)



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List down the issues which are addressed by the collective bargaining agent. (Marks: 5)

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON SEPTEMBER 1, 2014 AT 6:32PM

Mcq's were easy do read all lectures thoroughly

Explain winding up Sections of the company 3

Transfer of property 3

Commission of industry 3

Differ b/w partner, firm and firm name as per the Partnership Act1932 3

Under What conditions SECP can remove chief executive of NBFC 5

Appeal to High court 5

Who can cancel registration of trade union and explain briefly 5 err short question tha buht samjh nahi aarah tha kay likho

Functions of the labour court 5

Consequences of Negotiable instruments of endorsements 5

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON AUGUST 31, 2014 AT 8:35PM

here is my today's ppr

who can transfer property?

powers practices by BOD?

who qualify presiding officer and how?



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what can be the factor of SECP disable powers of chief executive of non banking finance company?

if labor court reject any case then how can appeal be made before high court of industrial disputes?

advantages of incorporation

In what areas employer's discrimination is unlawful?

ingredients of bill of exchange?

factors to be considered of carriage of goods by air?

only few mcqs were from past ppr n rest mcqs are totally new

good luck students

pray for me

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON JULY 22, 2013 AT 7:53PM

- What are the components of bill of transaction.
- what are the two types of partnerships explained under section 7 and 8.
- what are the factors necessary for sending goods through air carriage.
- What is full endorsement? How is it different from general endorsement.
- What type of agreements can end and already agreed upon contract
- If a registrar fails to get a trade union registered, under which circumstances can he be held liable for such action and what actions can be taken against him?

MGT611 FINAL TERM PAPER SHARED BY STUDENT

on July 22, 2013 at 8:50pm

What do u know abt injunction? How is it different from specific performance? 3 marks

What condition should be fulfilled while awarding the decision by the labor court? 5 marks



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What action are required to be taken if the essentials of registration of trade union are not fulfilled. 5 marks

Which condition contract become voidable . 5marks

What power is exercised by the board of directors on behalf of the listed company. 5 marks

What may the NIR commission do in dealing with a case of unfair labor practices.

When does an office bearer of trade union disqualify for being office bearer.

Who should be included in the board of directors of a listed company as described in the code of corporate government? 3 marks

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON JULY 25, 2013 AT 8:36PM

MGT611 Business & Labor Law

**Today Final Term Paper spring 2013
On 25 July 2013**

Total Questions: 64

Total MCQs: 54 (Each of 1 Mark)

Total Short Questions: 3 (Each of 3 Mark)



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Total Long Questions: 3 (Each of 5 Mark)

Short questions have 3 marks:

- How disputes are handled by the labor courts.
- Define two parties in a contract and their relation?
- Functions of joint work council

Long questions having 5 marks:

- Non banking finance company
- How labor courts are involved in disputes of employees and employers.
- Necessary features about carrier of goods by air.

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON JULY 25, 2013 AT 8:37PM

- What are the components of bill of transaction.
- what are the two types of partnerships explained under section 7 and 8.
- what are the factors necessary for sending goods through air carriage.
- What is full endorsement? How is it different from general endorsement.
- What type of agreements can end and already agreed upon contract
- If a registrar fails to get a trade union registered, under which circumstances can he be held liable for such action and what actions can be taken against him?

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON JULY 25, 2013 AT 8:38PM

64 Qs

54 MCQs

Q.Discuss the circumstances as per law of sales of goods when a conditions treated as a Warrantee. 3mks

Q.Who is qualified to be a presiding officer of labor court?n how is he appointed. 3mks

Q.Modes of winding up a company. 3mks

Q.What actions required to take if essentials of registration of trade union are not fulfilled. 5mks



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Q. Write five objects of Companies Ordinances 1984. 5mks

Q. How an appeal can be filed to appellate bench of the SECP. 5mks

Q. Restrictive endorsement with example. 5mks

Q. Can a contingent contract about an uncertain event be endorsed? If yes then explain, if not then give reasons. 5mks

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON JULY 26, 2013 AT 8:37PM

Total Qs 64, MCQs-56 and subjective-8

Total Short Questions: 3 (Each of 3 Mark)

Total Long Questions: 3 (Each of 5 Mark) as Below.

Remember me in your prayers at the time of Iftari. Thanks

1. How labor courts are involved in industrial disputes between Employers and Employee. **(5 Mark)**
2. What actions are taken if essentials of registration are not fulfilled. **(5 Mark)**
3. Characteristics of negotiable instruments. **(5 Mark)**
4. Give suitable illustration where a contract of bailment is made for the benefits of
a. bailor b. Bailee. **(5 Mark)**
5. What are the necessary conditions of "Declaration of Trust" as per law of trust. **(3 Mark)**
6. What are primary notes as recognized by Section 4 of Negotiable Instrument Act 1881. **(3 Mark)**
7. What is the purpose of setting Joint Works Council? **(3 Mark)**
8. "Mere silence as to facts is not fraud". Do you agree with this statement? Why or Why Not? **(3 Mark)**



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MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON JULY 26, 2013 AT 8:58PM

Total Questions: 60

Total Marks: 78

Total MCQs: 54 (Each of 1 Mark)

Total Short Questions: 3 (Each of 3 Mark)

Total Long Questions: 3 (Each of 5 Mark)

Short questions have 3 marks:

- How disputes are handled by the labor courts.
- Define two parties in a contract and their relation?
- Functions of joint work council

Long questions having 5 marks:

- Non banking finance company
- How labor courts are involved in disputes of employees and employers.
- Necessary features about carrier of goods by air.

MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON JULY 26, 2013 AT 9:00PM

What are the components of bill of transaction.

-what are the two types of partnerships explained under section 7 and 8.

-what are the factors necessary for sending goods through air carriage.

-What is full endorsement? How is it different from general endorsement.

-What type of agreements can end and already agreed upon contract

-If a registrar fails to get a trade union registered, under which circumstances can he be held liable for such action and what actions can be taken against him?



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MGT611 FINAL TERM PAPER SHARED BY STUDENT

ON JULY 20, 2013 AT 5:32PM

MCQS were very easy and the following are subjectives

- 1- How & When Negotiations Done
- 2- Trade Union Registration and Failure of Registration
- 3- Definition of Cheque, How Many Ways to Present Cheque in the Bank
- 4- What are the Acceptable Excuses for Failure of Contractual Obligations
- 5- Collective Bargaining Agent and Collective Bargaining Unit
- 6- Functions of Joint Works Council
- 7- Person Competent to Transfer of Property
- 8- What are the Similarities in Promise and Agreement

MGT611 FINAL TERM PAPER SHARED BY STUDENT

MCQS

1. **Promises which form the consideration for each other are called _____ promises.**
 - Reciprocal
 - Dependent
 - **Mutual**
 - Independent
2. **Committing, or threatening to commit, any act forbidden by Pakistan Penal Code is called _____.**
 - Coercion
 - Fraud
 - Misrepresentation
 - Mistake
3. **The court may grant rescission in all of the following cases, EXCEPT:**
 - The contract is voidable by plaintiff
 - The contract is voidable by blamed
 - The contract is not performed as per settlement



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- The contract is breached by one of the party
- 4. An investigation of the theory of legislation, precedent and custom is done by
 - Analytical jurisprudence
 - Historical jurisprudence
 - Ethical jurisprudence
 - Political jurisprudence
- 5. Which of the following is NOT a type of damages?
 - Ordinary damages
 - Liquidated damages
 - Compound damages
 - Nominal damages
- 6. Under section 41 of contract act, when a promisee accepts performance from a third person, he afterwards:
 - Can enforce it against promisor
 - Can not enforce it against promisor
 - Can not enforce it against third person
 - Can enforce it against both promisor and third person
- 7. A study of the legal source of law is called _____.
 - Analytical jurisprudence
 - Historical jurisprudence
 - Ethical jurisprudence
 - Legal jurisprudence
- 8. Which of the following damages includes indirect loss also that may arise due to breach of contract?
 - Ordinary damages
 - Special damages
 - Liquidated damages
 - Nominal damages
- 9. A promise made without intention of performing it amounts to:
 - Coercion
 - Innocent misrepresentation
 - Wrongful misrepresentation
 - Fraud
- 10. According to section 2(b) of contract act, when a proposal is accepted, it becomes:
 - An agreement
 - A contract
 - An offer
 - A promise



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11. Mr. A borrows Rs. 1000 from Mr. B and keeps his watch as security for payment of debt. It is called

- **Bailment**
- Pledge
- Guarantee
- Indemnity

12. Which of the following is an essential of a contract of Guarantee?

- Consideration of a contract
- Avoidance of misrepresentation
- Can be oral or written
- All of the given options

13. A painter contracts to paint a picture for his customer for Rs. 1000. Who can perform the contract?

- The painter himself
- Assistant of painter who is also a painter
- A student of painter who is learning painting
- Painter or his assistant only

14. Coercion is committing, or threatening to commit, any act forbidden by

- **Pakistan Penal Code**
- Criminal Procedure Code
- Contract act
- Civil Law

15. In absence of any contrary intention in a joint promise, all joint promisors must perform the promise

- Jointly
- Severally
- Jointly or severally
- Jointly and severally

16. A contract is Voidable if it is:

- Enforceable by law at the option of aggrieved party
- Not enforceable at all
- Enforceable if certain conditions are satisfied
- Enforceable by both parties

17. The starting point in the formation of a contract is:

- A proposal
- An agreement
- An obligation
- A legal relationship

18. Consent caused by a Fraud makes a contract:

- Void



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- **Voidable**
- Unenforceable
- Invalid

19. “Consideration” is an action which:

- Is done in the Past
- Is in progress at Present
- Will supposed to be occur in Future
- May occur in all the above situations

20. Contract of indemnity is a:

- Wagering contract
- Quasi contract
- Contingent contract
- Void contract

Subjective Questions

1. Define the terms and condition parties entering to a competent contract.(5)
2. Define the wagering contract under the section 30 of the contract act 1972.(5)
3. Elaborate few duties of work as contained IRO.(3)
4. BRIEFLY elaborate the classification of goods as per sale of ACT 1930(3)
5. What are the kinds of promissory notes as recognized by section 4 of negotiation instrument Act 1881? (3)
6. Imperative law with example (3)
7. Contrast in insurance and takaful(3)
8. What is bill of exchange explain specimen (5)
9. In which area discrimination by employer is considered to be unlawful as per section 63 IRO. (5)
10. Difference between fraud and misrepresentation (5).
11. Essentials of endorsement (3)
12. How presiding officer is selected of labor court how its selected (3)
13. Difference between the analytical jurisprudence and ethical jurisprudence (3)
14. Define unenforceable contract with example (3+2)
15. Elaborate some essentials of lease (5)
16. What are the negotiations on difference of disputes (Industrial disputes) (5)
17. Factors of carriage by air (5)



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FINAL TERM EXAMINATION
Spring 2009
MGT611- Business & Labor Law

Marks: 81

Question No: 1 (Marks: 1) - Please choose one

A promise made without intention of performing it will result in:

- Coercion
- Innocent misrepresentation
- Wrongful misrepresentation
- **Fraud**

Question No: 2 (Marks: 1) - Please choose one

A contract which ceases to be enforceable by law becomes _____ contract.

- **Void**
- Unenforceable
- Illegal
- Executory

Question No: 3 (Marks: 1) - Please choose one

When the performance of promise by one party depends on the prior performance of the

promise by the other party, the promises are:

- Mutual and independent
- Mutual and dependent
- **Mutual and concurrent**
- Dependent and concurrent

Question No: 4 (Marks: 1) - Please choose one



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When a lender tells the borrower afterwards not to return money, the contract is _____.

- Discharged
- Breached
- Performed
- Altered

Question No: 5 (Marks: 1) - Please choose one

Definition of contract of indemnity as given in Contract Act includes:

- Implied promise to indemnify
- Express promise to indemnify
- Cases where loss arises by events depending on conduct of promisee
- Cases where loss arises from conduct of promisor

Question No: 6 (Marks: 1) - Please choose one

The Primary Contract in a contract of guarantee is:

- A contract between creditor and surety
- A contract between creditor and principal debtor
- A contract between surety and principal debtor
- A contract between creditor, surety and principal debtor

Question No: 7 (Marks: 1) - Please choose one

Section 126 of Contract Act provides that a contract of guarantee _____.

- May be oral
- May be written
- May either be oral or written
- Must be written

Question No: 8 (Marks: 1) - Please choose one

Mr. X takes a loan of Rs. 5000 from Mr. Y on Guarantee of Mr. Z. The contract between

Mr. X and Mr. Y is the _____.

- Contract of bailment
- Principal contract
- Secondary contract
- Contract of indemnity

Question No: 9 (Marks: 1) - Please choose one

According to section 142 of Contract Act, a guarantee obtained by means of



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misrepresentation made by the creditor, concerning a material part of the transaction is

- Valid
- **Invalid**
- Indemnity
- Secondary contract

Question No: 10 (Marks: 1) - Please choose one

A pledge can also be called as _____.

- Bailment
- Guarantee
- Indemnity
- **Pawn**

Question No: 11 (Marks: 1) - Please choose one

In which sections of Contract Act, 1872 the law relating to contract of agency is contained?

- ss12-75
- ss76-123
- ss124 181
- **ss182-238**

Question No: 12 (Marks: 1) - Please choose one

An agent appointed to do all acts in connotation with a particular business identification is called _____.

- **Special agent**
- General agent
- Universal agent
- Mercantile agent

Question No: 13 (Marks: 1) - Please choose one

At the first annual general meeting of the company directors shall be elected in accordance with section 178 for a term of:

- 1 year
- 2 years
- **3 years**



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- 5 years

Question No: 14 (Marks: 1) - Please choose one

Which of the following is not true about dividends?

- Dividends shall be paid out of profits of the year or any other undistributed profits.
- **The directors can not pay interim dividends to the members.**
- The directors may set aside a reserve out of the profits before recommending any dividend.
- All dividends shall be declared and paid according to the amounts paid on the shares.

Question No: 15 (Marks: 1) - Please choose one

Which of the following is put into business by partners while formulating a partnership?

- Money
- Property
- Labour and skill
- **Any or all of given options**

Question No: 16 (Marks: 1) - Please choose one

The Partnership Act, 1932 repealed which of the following?

- Contract Act, 1872
- **Section 239-266 of the Contract Act, 1872**
- Section 72-144 of the Contract Act, 1872
- Law of trust

Question No: 17 (Marks: 1) - Please choose one

Which of the following is true about a firm?

- A firm has no legal existence.
- **A firm has a legal status if its own.**
- A firm has legal existence separate from its partners.
- A firm has no legal existence separate from its partners.

Question No: 18 (Marks: 1) - Please choose one

Preparation of required documents of the company is done during which phase?

- Inauguration phase
- Promotion phase
- **Registration phase**
- None of the given options



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Question No: 19 (Marks: 1) - Please choose one

Which of the following is a legal document on the basis of which the company conducts

its external affairs?

- Memorandum of association
- Article of association
- Share certificate
- Certificate of commencement of business

Question No: 20 (Marks: 1) - Please choose one

Memorandum of association of a new public company is required to be subscribed by

how many persons?

- At least one person
- Three persons
- At least three persons
- Seven persons

Question No: 21 (Marks: 1) - Please choose one

What should be last words in the name of the private limited company?

- Limited
- (Private) Limited
- & company
- Any of the given options

Question No: 22 (Marks: 1) - Please choose one

Which of the following is most probably a company limited by guarantee?

- A multinational company
- A commercial bank
- A stock exchange
- A local manufacturing concern

Question No: 23 (Marks: 1) - Please choose one

In which of the following situation, a company can not be wound up by the Court?

- If the company is unable to pay its debts
- If the company does not commence its business within a year from its incorporation
- If the company suspends its business for a whole year



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- If the number of members of a private company is reduced to five

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Question No: 24 (Marks: 1) - Please choose one

Within how many days from the date of the making of the winding up order, a certified copy of the order shall be filed with the registrar?

- 7
- 10
- 15
- 30

Question No: 25 (Marks: 1) - Please choose one

A committee of the Securities and Exchange Policy Board constituted under section 15 is termed as _____ in SECP Act, 1997.

- Committee
- Commission
- Board
- Clearing house

Question No: 26 (Marks: 1) - Please choose one

The Securities and Exchange Commission when exercising its powers under SECP Act, 1997, shall have regard to which of the following?

- The quality and capability of the management of the company
- The general public interest
- The interest of potential public investors in the company
- All of the given options

Question No: 27 (Marks: 1) - Please choose one

Which of the following is not a party in cheque?

- Payee
- Maker



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- Drawer
- Drawee

Question No: 28 (Marks: 1) - Please choose one

If the endorser signs his name only, the endorsement is said to be:

- Blank
- Full
- Special
- Restrictive

Question No: 29 (Marks: 1) - Please choose one

Within how many days from the receipt of the application to register a trade union, the registrar shall issue a registration certificate?

- 7 days
- 10 days
- 15 days
- 30 days

Question No: 30 (Marks: 1) - Please choose one

According to Industrial Relations Ordinance, which establishment shall set up a Joint Works Council?

- Private limited company
- That has no shop steward
- Listed in stock exchange
- Having more than fifty employees

Question No: 31 (Marks: 1) - Please choose one

What shall be the extent of workers' participation in Joint Works Council?

- 25%
- 40%
- 50%
- 60%

Question No: 32 (Marks: 1) - Please choose one

Which shares are issued to the promoters or the underwriters of the company?

- Deferred shares



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- [Cumulative preference shares](#)
- [Ordinary shares](#)
- [Equity shares](#)

Question No: 33 (Marks: 1) - Please choose one

The Securities and Exchange Commission monitors the general financial condition of a

Non Banking Finance Company and may order .

- [To present annual report](#)
- [To appoint internal auditor](#)
- [To cease the business](#)
- [For special audit](#)

Question No: 34 (Marks: 1) - Please choose one

All of the following included in the procedure of examining any person by the Securities

and Exchange Commission, EXCEPT:

- [Any person concerned with the case may be called by written notice](#)
- [Such person shall be examined orally](#)
- [Such person shall be examined in written](#)
- [Any statement made by such person shall be prepared in writing](#)

Question No: 35 (Marks: 1) - Please choose one

Who defines the roles and responsibilities of the Chairman and Chief Executive of a

listed company?

- [Majority shareholders](#)
- [Executive directors](#)
- [The Board of Directors](#)
- [Securities and Exchange Commission](#)

Question No: 36 (Marks: 1) - Please choose one

Which of the following may not be included in the Directors Reports of listed companies?

- [The fact along with reasons that the company is considered to be a going concern](#)
- [Significant deviations from last year in operating results of the company](#)
- [Key operating and financial data of last six years in summarized form](#)
- [The reason that the company has not declared dividend](#)



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Question No: 37 (Marks: 1) - Please choose one

An agent may draw an instrument on behalf of the principal subject to following conditions, except:

- That the agent has been authorized by the principal to that effect
- That the principal is not a competent person to enter into a contract
- That the agent acts in the name of the principal
- That the agent has not exceeded his authority

Question No: 38 (Marks: 1) - Please choose one

According to Halsbury, which of the following is a relation that subsists between persons

carrying on a business in common with a view of profit?

- A proprietorship
- A partnership
- An enterprise
- A company

Question No: 39 (Marks: 1) - Please choose one

As per Industrial Relations Ordinance, 2002, the determination by a Labour Court, Arbitrator or an Appellate Court of competent jurisdiction of any industrial dispute or any

matter relating thereto is called:

- Judgment
- Award
- Decision
- Ruling

Question No: 40 (Marks: 1) - Please choose one

An award of the Labour Court, in case of strike and lockout, shall not be for a period:

- Less than one year
- More than one year
- Less than two years
- More than two years

Question No: 41 (Marks: 1) - Please choose one

Labour courts are established by whom?



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- Provincial Government
- Federal Government
- High Court
- Supreme Court

Question No: 42 (Marks: 1) - Please choose one

Which of the following is not a bench of National Industrial Relations Commission?

- Single bench
- Division bench
- Half bench
- Full bench

Question No: 43 (Marks: 3)

Describe the essentials of an endorsement.

Question No: 44 (Marks: 3)

Who is qualified to be a presiding officer of a labour court? How a presiding officer is appointed?

Question No: 45 (Marks: 3)

When the winding up of a company is considered to be commenced? Discuss the effects of voluntary winding up on the status of company.

Question No: 46 (Marks: 5)

How can a Non Banking Finance Company be incorporated? Discuss with reference to section 282 of Companies Ordinance, 1984.

Question No: 47 (Marks: 5)

Describe the conditions to create a trust which should be fulfilled by the author of trust as contained in section 6 of the Trusts Act, 1882.